

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

C.R. No.1131/2019

Muhammad Sharif

Versus

Province of Punjab etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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08.10.2019

Mr. Rashid Iqbal Bhatti, Advocate for the petitioner.

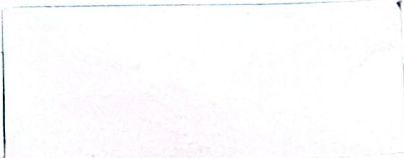
Through this Civil Revision the petitioner has called in question order dated 30.01.2019 passed by the learned Civil Judge, Vehari whereby his application under order XXXIX Rule 1 & 2 CPC has been dismissed and has also challenged order dated 20.09.2019 of the learned Appellate Court dismissing his appeal against the said order of learned Trial Court. Learned counsel for the petitioner has argued that both the Courts below have not properly exercised jurisdiction vested with them while passing the impugned orders. He explained that the petitioner was in possession of the said property for the last more than 50 years which was to be allotted to the occupant in term of Notification No.477-2012/206/LR-VI dated 07th March, 2012 in accordance with the Punjab Conferment of Proprietary Rights on Occupancy Tenants and Muqarraridars Act, 2012. He further maintains that allotment of said land in favour of private respondents by the Government of Punjab is illegal. In fact the petitioner has challenged transfer of land

comprising in Khewat No.29 of village Kundnoabad Sani, Tehsil Mailsi, which was previously state land, allotted to defendants No.2 to 9 in pursuance of mutation No.488/1 dated 31.05.2012. The petitioner seeks setting aside of the said mutation on the basis of his possession over the property for the last fifty years.

2. The impugned mutation No.488/1 shows the respondents as owner of the said land in view of the notification No.477/12 issued by the Board of Revenue and same mutation was challenged by the petitioner before the learned Courts below, however, the petitioner did not place any revenue record before the said Courts to show that he was entitled to allotment in preference to respondents as he was in occupation of the said property for the last 50 years. Today copy of the revenue record has been produced before this Court, however, as the petitioner did not place any such document before the learned Courts below, therefore, at this belated stage it cannot be considered by this Court as this Court in its revisional jurisdiction only has to look into the jurisdictional defect in the orders passed by learned Courts below, if there is any. The claim of the petitioner is based on entry of possession in revenue record whereas the property vests with respondents through the afore-referred mutation. The authenticity of documents relied upon by him may be established after recording of evidence which is yet to be produced before the learned Trial Court as suit is still pending there. The documents produced in evidence

shall be considered at that stage by the learned Trial Court. Further where evidence is required to prove a claim that case cannot be presumed a prima facie one. Further balance of convenience also does not lie in favour of the petitioner as mutation was entered in favour of the respondents on 30.09.2011, which has been challenged by the petitioner by filing a suit in 2016. Besides question of suffering of irreparable loss also requires recording of evidence for determination. As, prima facie case, balance of convenience and irreparable loss do not co-exist and no illegality jurisdictional defect, erroneous exercise of jurisdiction, misreading and non-reading by learned Courts below while passing the impugned orders, has been pointed out despite efforts by learned counsel for the petitioner, hence, no interference by this Court is called for in impugned orders and instant Civil Revision being devoid of merits is **dismissed**. However, learned Trial Court shall decide the suit pending with it strictly in accordance with law on its own merits without being influenced from any observation made by this Court in this order.


Waqar


(Muzamil Akhtar Shabir)
Judge